

24STCV01467 24STCV01467

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV01467

EDITH

GUTIERREZ vs RALPHS GROCERY COMPANY, et

June

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT, RALPHS GROCERY COMPANY DBA RALPHS' MOTION FOR SUMMARY JUDGMENT.

RULING:

The Court denies the Motion.

I.

BACKGROUND

On January 19, 2024, EDITH GUTIERREZ (Plaintiff) filed a form Complaint against RALPHS GROCERY COMPANY (Defendant), listing Causes of Action for: 1) Premises Liability; and 2) General Negligence.

Plaintiff alleges that she suffered serious injuries from a slip-and-fall, causing injuries, due to negligence in maintenance, occurring at Ralphs at 3410 W. 3rd Street, Los Angeles.

On January 15, 2026, Defendant filed the Motion for Summary Judgment, on summarized grounds that (1) Defendant conducted reasonable inspections of the premises and a sweep shortly before Plaintiff's alleged incident, (2) Defendant did not create any hazard that caused Plaintiff's fall, and (3) Defendant lacked a reasonable time to discover and correct any hazard.

Plaintiff opposes, based upon several counterarguments, including that Plaintiff's Deposition evidences that the slippery fruit was a smashed peach or plum, and Defendant's representatives have provided some incompetent, impeachable and contradictory testimony.

II.

LEGAL STANDARD

"[T]he defendant must make an affirmative showing that the plaintiff will be unable to prove its case by any means." (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1439.) "It is the defendant's burden on its motion for summary judgment to negate the matters which the plaintiff will bear the burden of proving at the trial." (Segura v. Brundage (1979) 91 Cal.App.3d 19, 28-29.) Defendants moving for summary judgment must make a prima facie showing by presenting evidence that a reasonable trier of fact could not find that any underlying material fact is more likely than not. (Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose (2009) 174 Cal.App.4th

339, 352.) “The submission of evidence which is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant’s burden.” (Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 297.)

“[T]he role of the court in summary judgment proceedings is not to weigh the evidence, but to determine whether there exists a triable issue of material fact.” (Habitat Trust for Wildlife, Inc. v. City of Rancho Cucamonga (2009) 175 Cal.App.4th 1306, 1342.)

III.

ANALYSIS

A. Evidentiary Objections

As to summary judgment or adjudication motions, judges need only rule on evidentiary objections deemed material to the disposition. (Code Civ. Proc., § 437c, subd. (q).) As to summary judgment rulings, the law does not require explanations for rulings on evidentiary objections. (Mora v. Big Lots Stores, Inc. (2011) 194 Cal.App.4th 496, 512, fn.15, disapproved of on other grounds by Noel v. Thrifty Payless, Inc. (2019) 7 Cal.5th 955.) “[A]n appellate court reviews a court’s final rulings on evidentiary objections by applying an abuse of discretion standard.” (Miranda v. Bomel Const. Co., Inc. (2010) 187 Cal.App.4th 1326, 1335.)

The Court overrules Plaintiff’s Evidentiary Objections, received June 5, 2026, only as to the first unnumbered one, and otherwise sustains them.

B. Untimely Reply Documents

“The [summary judgment] reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (a)(4).)

The Court strikes

Defendant's Reply evidence and Separate Statement but considers the Reply Memorandum. Moreover, Defendant counterproductively has admitted factual disputes in the Reply Separate Statement, at additional fact numbers 4, 5, 8, 11 through 23, 25, 26, 28 through 36, 38, 40, 42 through 44, and 46 through 54.

C. Merits

Defendant seeks summary

judgment based on arguments including: 1) Plaintiff offers no evidence that Defendant knew of the grape Plaintiff slipped on; 2) video clips show the material times and that Defendant lacked notice of fruit on the floor; 3) just three minutes elapsed from when grapes were dropped until Plaintiff fell; and 4) other opposing points are just misleading distractions.

Plaintiff makes

counterarguments including: 1) Defendant failed to prove (a) the area where Plaintiff fell, (b) insufficient time to notice prior to the incident and (c) inspections that were reasonable; 2) a triable issue of material fact exists regarding whether Defendant had sufficient notice of the dangerous condition; and 3) reasonableness of premises inspections is a question of fact.

The

elements of the Cause of Action for Premises Liability including Negligence, are these:

Defendant was owner, occupant or lessor of premises;

defendant was negligent in the use, maintenance or management of premises;

negligence was a cause of injury, damage, loss or harm to plaintiff.

(Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.) See also Ambriz v. Kelegian (2007) 146 Cal.App.4th 1519, 1532 [triable issue of fact as to the issues of duty and causation in

premises-liability case and error to rule as a matter of law]; Peralta v. Vons Companies, Inc. (2018) 24 Cal.App.5th 1030, 1037 [“a defendant is entitled to judgment as a matter of law if the plaintiff fails to show that the dangerous condition existed for at least a sufficient time to be discovered by ordinary care and inspection.”].)

The Court readily determines that there are triable issues of material fact, particularly as to (1) what fruit Plaintiff stepped on, which may not have been the grape that Defendant emphasizes, and (2) whether Defendant had sufficient notice of the dangerous condition in time to have a duty to address the dangerous condition. (See, e.g., attorney Justin K. Renge's Declaration, filed 6/5/26. Exhibit B (Plaintiff's Deposition), 54:10-24 (Yes, it was like -- like a peach. It looked like a peach. I don't know. It was either a plum or peach.”); Walter Lozano Declaration, filed 1/15/26, ¶¶ 8-9 (“At 2:24:00 p.m. a lady dropped 2 grapes on the floor in the produce section where the plaintiff fell three (3) minutes later.. [¶] “At 2:27 p.m. plaintiff, Edith Gutierrez slipped on the grapes and fell.”).)

IV.

CONCLUSION

Accordingly, the Court denies the Motion, for reasons set forth above.